

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice A.K.M. Rabiul Islam

02.07.2024

Mr. Quamrul Islam with
Mr. Md. Shorab Hossain, Advocate
....For the convict-appellant.
Mr. Sujit Chatterjee, D.A.G. with
Mr. Moududa Begum, A.A.G.
Mr. Mirza Md. Soyeb Muhit, A.A.G.
Mr. Mohammad Selim, A.A.G.
Mr. Zahid Ahmed (Hero), A.A.G.
....For the State

This is an application for bail in a pending appeal.

The convict-appellant has been convicted in Metropolitan Special Tribunal Case No.165 of 2018 arising out of G.R. Case No.162 of 2015 corresponding to Bimanbondor Police Station Case No.34 dated 15.03.2015 convicting the appellant under sections 25B 1(b)/25(D) of the Special Powers Act, 1974 and sentencing to suffer rigorous imprisonment for a period of 14(fourteen) years and to pay a fine of Tk.20,000/- (twenty thousand) in

default to suffer rigorous imprisonment for further period of 01 (one) month.

Mr. Quamrul Islam, learned Advocate for the convict-appellant Aktaruzzaman submits that no gold bar was recovered either from the possession of the convict-appellant nor pursuant to informant obtained from him. 190 pieces, 6 pieces, 1 bar weight 85 gram 4 pieces weight 4 Kg, 114 pieces chain weight 397 gram and also 120 pieces bar, 185 pieces bar were found behind the mirror of the toilet of an air craft coming from Dubai. The learned Judge has convicted the convict-appellant on the findings that the convict-petitioner being a line maintenance staff of Bangladesh Biman he had technical knowhow as to conceal the gold bar in above place of the Air craft which is not based on legal evidence on record.

The convict-appellant has already served out three years and four months of above sentence.

Mr. Sujit Chatterjee, learned Deputy Attorney General vehemently opposes the prayer for bail to the convict-appellant.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that 190 pieces, 6 pieces, 1 bar weight 85 gram 4 pieces weight 4 Kg, 114 pieces chain weight 397 gram and also 120 pieces bar, 185 pieces bar were recovered from behind the mirror of the toilet of an Air craft of Bangladesh Biman which arrived from Dubai.

There is no eye witness of the occurrence. No co-accused nor the convict-appellant has made any confession under Section 164 of the Code of Criminal Procedure.

The convict-appellant is a line maintenances worker of Bangladesh Biman.

The learned Judge of the tribunal has convicted the convict-appellant on the ground that he has

required technical knowhow to conceal the gold bar in above place of the Air craft.

As mentioned above the convict-appellant has already served out more than 3 years and 4 months of above sentence.

On consideration of above materials on record we are inclined to grant bail to the convict-appellant.

As such, the application for bail is allowed.

Let convict-appellant Aktaruzzaman, son of late Younus Ali Prodhan be enlarged on bail for a period of 6(six) months subject to furnishing bail bond to the satisfaction of the learned Metropolitan Special Tribunal No.14, Dhaka.

MD. MASUDUR RAHMAN
BENCH OFFICER